



AI Integration into the Philippine Legal System: Downsides and Benefits from Foreign Legal Systems

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Introduction

*“Justice delayed is justice denied.”*¹ The judiciary’s purpose is the administration of justice and the interpretation of law yet it is more often delayed by the number of cases docketed in its courts and the time consumed in order to sort through backlogs, resulting in justice to those seeking it is delayed if not denied as their case sits pending litigation in court, however, a technological solution exist that will help to expedite the processes.

On October 12, 2024, Supreme Court Chief Justice Alexander G. Gesmundo, during the the 19th Conference of Chief Justices of Asia and the Pacific, discusses the significant potential of artificial intelligence in assisting judges.² During the conference, the Chief Justice discussed the significant potential of AI to assist judges in streamlining administrative tasks, expedite legal research, and predicting judicial outcomes. And on November 6 of the same year, Senior Associate Justice Marvic M.V.F. Leonon addressed the media of the Supreme Court’s plan to draft the *“AI Governance Framework for the Judiciary.”*³ The SC’s plans to explore the potential of AI to enhance judicial efficiency and accuracy with their planned framework aiming to provide the standards and guidelines for using AI in court administration, specifically in legal research, document analysis, courtroom applications and case management in order to create a modern, fair and efficient Philippine justice system.

¹ Widely attributed to British Prime Minister William Ewart Gladstone;

It is a legal maxim that, disputes should be resolved timely so that the legitimate rights can be protected in time.

² Supreme Court of the Philippines, *Chief Justice Gesmundo: AI Can Assist Judges, But Should Never Replace Human Elements of Justice* (2024, October 13)
<https://sc.judiciary.gov.ph/chief-justice-gesmundo-ai-can-assist-judges-but-should-never-replace-human-elements-of-justice/>

³ Supreme Court of the Philippines, *SC to Establish AI Governance Framework for the Judiciary* (2024, November 11)

<https://sc.judiciary.gov.ph/sc-to-establish-ai-governance-framework-for-the-judiciary/#:~:text=To%20this%20end%2C%20the%20Court,%2Dand%20second%2Dlevel%20courts.>



Yet, such new and developing technology is not without causing shocks and issues for the present day legal system.

Artificial Intelligence

Artificial intelligence is an umbrella term that covers a wide range of technologies and applications and over the years, numerous definitions have been given to it; one refers to AI as, *“the creation of machines or systems capable of performing tasks that typically require human intelligence, such as learning, reasoning and problem solving.”*⁴ In another, AI is a set of scientific methods, theories and techniques whose aim is to reproduce, by a machine the cognitive abilities of human beings with current development seeking to have machines perform complex tasks previously carried by human.⁵ And lastly, albeit more direct definition, *“a technology that enables computers and machines to simulate human learning, comprehension, problem solving, decision making, creativity and autonomy.”*⁶

Regardless of how one defines, AI is capable of a wide range of tasks and outputs without the need of human control. Since their inception back in the 1950s when Alan Turing⁷ first published his paper on thinking machines⁸ and the gradual development of AI technology in recent decades all over the globe have seen them used in various scientific and technological fields such as medicine, space exploration, and engineering, among others.^{9 10 11 12} For the

⁴ Kumar, Anil & Dr. Navya, Artificial Intelligence (AI) And The Future of Law, Vol. 05, Issue 01 International Journal of Progressive Research In Engineering Management And Science (IJPREMS), 1134 – 1146 (January 2025)
https://www.ijprems.com/uploadedfiles/paper/issue_1_january_2025/38263/final/fin_ijprems1737371419.pdf

⁵ Rochoa, Cinara & Carvalho, João, Artificial Intelligence in the Judiciary: Uses and Threats. Department of Information System, University of Minho, Portugal (2022)
https://www.academia.edu/102387942/Artificial_Intelligence_in_the_Judiciary_Uses_and_Threats

⁶ Stryker, Cole. & Kavlakoglu, Eda, What is Artificial Intelligence (AI)? International Business Machines Corporation (Aug. 9, 2024) <https://www.ibm.com/think/topics/artificial-intelligence>

⁷ Copeland, B.J, Alan Turing: British mathematician and logician. Britannica (June 22, 2025)
<https://www.britannica.com/biography/Alan-Turing>

⁸ Id.

⁹ Office of Justice Programs, A Brief History of Artificial Intelligence, US Department of Justice (2018, September 30) <https://nij.ojp.gov/topics/articles/brief-history-artificial-intelligence>

¹⁰ National Aeronautics and Space Administration, What is Artificial Intelligence? (2024, May 13)
<https://www.nasa.gov/what-is-artificial-intelligence/>

¹¹ Net Group: Digital Justice Solutions Team, Artificial Intelligence: A Substitute or Supporter of Judges? The Supreme Court of Estonia (2019),
<https://aastaraamat.riigikohus.ee/en/artificial-intelligence-a-substitute-or-supporter-of-judges/>

¹² Pilving, Ivo & Mikiver. Monika, A Kratt as an Administrative Body: Algorithmic Decisions and Principles of Administrative Law. The Supreme Court of Estonia (2019),



purposes of this paper, we focus primarily on notable developments and integration of artificial intelligence in the field of law, its downsides and benefits to the Philippine judicial system.

AI in the Realm of Law and Justice

In the realm of law and justice, the use of AI in the administration of justice has already been introduced in the courts of other countries.¹³

To start with the most cited example, Estonia. In 2019, the Estonians unveiled, an AI judge to settle small claims dispute thru analyzing data - the disputes and arguments of the parties – and predicting the likely outcome. It should be stressed, however, that the Estonian AI judge does not render judgment by itself on the case but rather provides the aforementioned outcome and let the human presiding judge decide the case.¹⁴ For the most part, the Estonian Ministry of Justice uses artificial intelligence to handle the repetitive but time-consuming tasks, such as the filing of documents, in order to reduce the backlog of judges in small claims case and allow their focus on more complex cases.¹⁵

Next is the Smartsettle One, an Online Dispute Resolution (ODR) tool that was made in Canada around 2019. It is negotiating app that helps disputing parties mediate and settle their dispute using algorithms that learns and assess the priorities of the disputing parties and generates a compromise or settlement to their dispute without the need to discussion such settlements in person.^{16 17} In addition, it also allows the parties to offer their proposed solutions to settle the dispute and for counter-offers to be exchanged with the AI drawing a compromise from the offered and counter offered proposed solutions by the parties that can be hopefully accepted by the parties

<https://aastaraamat.riigikohus.ee/en/a-kratt-as-an-administrative-body-algorithmic-decisions-and-principles-of-administrative-law/>

¹³ Id.

¹⁴ Ministry of Justice and Digital Affairs, Estonia does not develop AI Judge. Republic of Estonia (Jan. 16, 2022), <https://www.justdigi.ee/en/news/estonia-does-not-develop-ai-judge>

¹⁵ Cantero, Marta Gamito & Gentile, Giulia, Algorithms, Rule of Law, and the Future of Justice: Implications in the Estonian Justice System. Issue 2023/27 School of Transnational Governance, European University Institute (Oct 31, 2023) https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4618760

¹⁶ Vasdani, Tara, From Estonian AI Judges to robot mediators in Canada, UK, the Lawyer's Daily, LexisNexis (June 13, 2019),

<https://www.lexisnexis.ca/en-ca/ihc/2019-06/from-estonian-ai-judges-to-robot-mediators-in-canada-uk.page>

¹⁷ Greig, Bruce, Robot Mediators? A short review of SmartSettle One. Bruce Greig Civil & Commercial Mediator (Oct. 7, 2020)

<https://www.brucegreigmediator.com/post/robot-mediators-a-short-review-of-smartsettle-one>



involved.¹⁸ It should be stressed that the ODR is only limited to assisting the parties in mediating the dispute and drawing up a settlement, the parties who chose to use Smartsettle One are not obligated to just agree with whatever settlement is generated by the AI, its resolutions are not legally binding unless the parties have agreed and signed the settlement.

And lastly, the People's Republic of China. Since 2017, China has seen great potential in integrating AI into their judicial system. It cannot be emphasized enough how much resources and determination Chinese have thrown into AI development that by 2017 they have introduced and produced various domestic artificial intelligence systems to enhance their capabilities.¹⁹ In relation to the paper's purposes, the level of digitalization and automation achieved for Chinese law and order shows how far they have and can achieve in integrating artificial intelligence to already existing systems.²⁰ In the case of their surveillance system, the integration of AI allows it to work in tandem with existing technologies, such as the already existing video surveillance system, facial recognition, audio recognition, optical character recognition, among others, to improve said systems to better achieve their desired goals.²¹ ²² One such AI assisted and enhanced Chinese surveillance system is the Tian Yan camera system which is able to identify and recognize wanted law breakers, tracking their movements and informing local law authorities of their whereabouts, resulting in their subsequent arrest.²³ As a consequence of these AI systems, the Chinese law enforcement have become efficient in their performance and in doing so reduced the number of crimes, such but not limited to, illegal parking, improper bus lane usage, jaywalking within their cities yet raising the question from many critics, both foreign and domestic, the

¹⁸ Ross, Graham, Smart Settlement: an opportunity for mediators. Internet for Lawyers Newsletter. (March 29, 2019) <https://www.infolaw.co.uk/newsletter/2019/03/smart-settlement-opportunity-mediators/>

¹⁹ Omaar, Hodan. How innovative is China in AI? Information Technology & Innovation Foundation (ITIF) (Aug 26, 2024) <https://itif.org/publications/2024/08/26/how-innovative-is-china-in-ai/>

²⁰ Cousineau, Claire, Smart Courts and the Push for Technological Innovation in China's Judicial System. Center for Strategic and International Studies (CSIS) (April 15, 2021) <https://www.csis.org/blogs/new-perspectives-asia/smart-courts-and-push-technological-innovation-chinas-judicial-system>

²¹ Id.

²² Wang, Nyu & Tian, Michael Yuan, 'Intelligent Justice': AI Implementation in China's Legal System. ResearchGate (May 22, 2024) https://www.researchgate.net/publication/358318071_'Intelligent_Justice'_AI_Implementations_in_China's_Legal_Systems

²³ Id.



morality of using AI to enhance the capabilities of their surveillance system to violate the privacy of their own people.²⁴

In the Chinese legal system, the Chinese have introduced the Smart Court Reforms (SCR), where they installed AI systems to help digitalize and, to some extent, automate their judicial system. Called Smart Courts, for short, they are platforms and softwares to help judges with case management, make the judicial process more convenient for litigants as they allow for integration for mobile apps and increase the connectivity between different stakeholders in the judicial process.²⁵

The court AI system, using speech recognition and image processing, compiles and converts trial recordings, images, paper based files to digital formats with high data accuracy and using cloud database suite allows the Chinese courts in to easily retrieve past cases with similar details, including judgment and legal provisions, reducing the time to manually research and the reliance of memory on verdicts and allowing for the judges of said courts, in theory, to apply fair and consistent legal standards.²⁶ ²⁷By 2019, the system had reached the point that some courts have replaced their court clerks with the AI for there is less risk of key details being omitted or misunderstood by human clerks, specifically for cases under summary procedure.²⁸

To add further, the Rui Judge, a type of logic engine to interpret evidential information and identify logical connections between individual pieces of evidence for trial centered litigation that produces sentencing recommendation. Furthermore, alongside the smart courts are AI robots and guides to help members of the judiciary and litigants in Hangshou, Xinyang, Chongzhou, among many other city people's courts, where these AI service robots and guides help litigants in the filing of their cases, to provide legal consultation, predict the risk and likely outcomes of pursuing a case and provide litigants with a pre-trial prediction of winning their cases based on oral

²⁴ Id.

²⁵ Reiling, Dory & Papagiannenas, Straton, Lessons from China's Smart Court Reform. Volume: 16 Issue:1 International Journal for Court Administration (IACA Journal) (2025)
<https://iacajournal.org/articles/10.36745/ijca.679>

²⁶ Id.

²⁷ Shi, Changqing, Sourdin, Tania & Li, Bin, The Smart Court – A New Pathway to Justice in China? Vol. 12 Issue 1 International Journal for Court Administration (IACA) (March 11, 2021)
<https://iacajournal.org/articles/10.36745/ijca.367>

²⁸ Chinese Business Law Journal, AI in courts paves way for efficiency, consistency in China, Law dot Asia (May 14, 2018) <https://law.asia/ai-in-courts-paves-way-for-efficiency-consistency-in-china/>



testimony provided by the litigants and processed through the robots' algorithms, and much more as development continues.²⁹

And that is just the tip of the icebergs of examples of AI integration in the judicial system. Besides the three specific examples named, elsewhere in the world, AI technology has been used extensively by numerous foreign legal systems.³⁰ The US, being one of the leader of said technology, have law firms using AI as virtual assistants in serving their clients on matters related to legal research, drafting of legal documents, among other such basic yet time consuming tasks.^{31 32} Japan also have their AI systems serving as assistants in their legal system but under strict regulation that the use of such systems is on matters of drafting contracts, not on actual interpretation of the law.^{33 34} The Indian legal community has too jumped on the bandwagon of integrating AI with numerous Indian law firms planning if not already using AI tools as assistants in similar tasks.³⁵ Vietnam is following China's lead on creating their own Smart courts in order to improve the efficiency of their courts.³⁶ In Singapore, they have allowed their legal system to use AI albeit unofficial integration of AI into their courts, particularly in summarizing legal documents and translations into the local languages of Singapore, all the while they have yet to pass their Model AI Framework into actual law to regulate AIs, Singapore chose to instead have AI use and their penalties for misuse fall under existing laws while at the same time strictly encourage proper ethical use of AI technology by their law community within their borders.³⁷ And in the

²⁹ Id.

³⁰ Dolidze, Tatia, The Evolving Role of Artificial Intelligence in Legal Education and Research. Vol. 11 No. 33 Law and World (2025) <https://lawandworld.ge/index.php/law/article/view/677>

³¹ Couture, Robert J., The Impact of Artificial Intelligence on Law Firms' Business Models. Center on Legal Profession, Harvard Law School (February 25, 2025) <https://clp.law.harvard.edu/knowledge-hub/insights/the-impact-of-artificial-intelligence-on-law-law-firms-business-models/>

³² Misr University for Science and Technology, How AI is being used in the Legal Field Today, MUST University (n.d) <https://mustedu.com/how-ai-is-being-used-in-the-legal-field-today/>

³³ Katz, Danny, Japan's Approach to Legal AI: What US Attorneys Miss While They're Too Busy Panicking. LinkedIn Corporation (Mar. 6, 2025)

<https://www.linkedin.com/pulse/japans-approach-legal-ai-what-us-attorneys-miss-while-danny-katz-mrrce/>
³⁴ Chilingirov, Spas, Japan APPI Cross Border Transfer: Steps to Comply. Captain Compliance (May 13, 2024) <https://captaincompliance.com/education/japan-appi-cross-border-transfer/>

³⁵ Id.

³⁶ Tung, Nguyen Thanh, Courts: Building smart courts in Vietnam. Vietnam Law and Legal Reform (Jan 31, 2025) <https://vietnamlawmagazine.vn/building-smart-courts-in-vietnam-73527.html>

³⁷ Lin, Clare, Four ways AI is shaking up Singapore's Legal Practice. GovInsider (Jun. 5, 2025) <https://govinsider.asia/intl-en/article/four-ways-ai-is-shaking-up-singapores-legal-practice>; White & Case LLP, AI Watch: Global Regulatory Tracker – Singapore. (May 13, 2024) <https://www.whitecase.com/insight-our-thinking/ai-watch-global-regulatory-tracker-singapore>; Personal Data



Philippines, although it has yet to officially integrate Artificial Intelligence in its legal system, it isn't staying idle in the growing AI industry. In 2023, a bill was filed with the Philippine House of Representatives to regulate the eventual rise of AI systems.³⁸ In addition, discussions are about to amend existing data privacy³⁹ and intellectual property laws⁴⁰ to include the challenges from AI with the Philippine Supreme Court announcing plans of drafting a framework to set the standards and guidelines for the eventual use of AI in the judiciary.⁴¹ ⁴²And already a number of AI tools have appeared and are in use by Filipino lawyers and law students in digesting cases, predicting litigation outcomes, drafting of contracts, and giving of legal advice albeit approached with caution by law practitioners.⁴³ And more developments of AIs in the legal field are still taking place or will soon take place as time marches on, making it clear it is an inevitability.

What can we learn from foreign judiciaries?

The presence of artificial intelligence in the judiciary is not just a possibility but is an inevitability as shown with recent developments and happenings elsewhere in the world, yet, the examples from these foreign legal systems have shown that the integration of AI technology into the judiciary has its downsides and benefits.

Protection Commission Singapore, Singapore's Approach to AI Governance. (2020)
<https://www.pdpc.gov.sg/help-and-resources/2020/01/model-ai-governance-framework>; Nayak, Rohit, Singapore's forward thinking approach to AI Regulation. Diligent (Aug. 20, 2024)
<https://www.diligent.com/resources/blog/Singapore-AI-regulation>; Thomson Reuters, Ethical AI for Lawyers in Singapore: Key responsibilities. (Jun. 23, 2024)
<https://insight.thomsonreuters.com/sea/legal/posts/ethical-ai-for-lawyers-in-singapore-key-responsibilities>

³⁸ House Bill No. 7396, or the Act Promoting the Development and Regulation of AI in the Philippines

³⁹ Data Privacy Act of 2012, Rep. Act. No. 10173 (Phil.).

⁴⁰ Intellectual Property Code of the Philippines, Rep. Act No. 8293 (Phil.).

⁴¹ Supreme Court of the Philippines, SC to Establish AI Governance Framework for the Judiciary (2024, November 11)

<https://sc.judiciary.gov.ph/sc-to-establish-ai-governance-framework-for-the-judiciary/#:~:text=To%20this%20end%2C%20the%20Court,%2Dand%20second%2Dlevel%20courts.>

⁴² Beltran, Richard Henrick I., & Tacandong, Ma. Samira C., Regulation of Artificial Intelligence in the Philippines. Villaraza & Angangco the Firm (April 18, 2023)

<https://www.thefirmva.com/updates.do?id=27394>

⁴³ Cabaluna, Cedrick, How Artificial Intelligence (AI) is Shaping the Legal Industry in the Philippines. Lexagle (May 27, 2025) <https://www.lexagle.com/blog-en-sg/ai-legal-industry-philippines>



A. DOWNSIDES

Starting with the downsides of AI integration. First, violation of the Individual's Constitutional Right to Privacy and Data Privacy.⁴⁴ As shown by China's AI enhanced surveillance systems, acting on their programming, AIs have no issue in tracking down an individual's movement, whether in the real world or cyberspace as long as said individual was placed as one of their tasks to accomplish.⁴⁵ Granted it is for the purpose of reducing crime and keeping the law-abiding citizens safe and secure but how far should such measures using AI be taken for the safety and security of the people before it violates their right to travel?⁴⁶ Furthermore, in order for AIs to achieve their objectives and tasks, they require a vast amount of data to work with. Regardless of whether a case is civil or criminal, the data from said cases are of private and sensitive nature and without proper safeguards, said private and sensitive data might be proliferated into the public sphere, more so if the AI systems are still undergoing its pilot stage which is still the case in the Philippines.⁴⁷

Next, of the Individual's Constitutional Right to be Presumed Innocence Until The Contrary is Proved.⁴⁸ Both the Chinese AI smart robots and the Estonian guides, upon being provided with and examining the data (the oral testimonies of the parties-in-interest, the information, jurisprudence, the legal provisions, etc.), the AIs can make recommendations, legal predictions and whatnot of the case to the court but what if the data is biased?⁴⁹ Or just faulty with certain details? Note, such predictions are made before the start of proceedings or even the pre-trial litigation, such faulty prediction may influence the court to presume that this is how the proceedings will take place resulting in an unintentional bias to be made when the court deliberates on their decision to the case thus instead of administering an incorrect judgment on the litigants. Yes, human judges are not above such mistakes in their judgment but AI have been sold on the idea that they are more precise, neutral and less likely to make such mistakes compared to human judges.

⁴⁴ Const. (1987), art. III, § 3 (Phil.).

⁴⁵ Id.

⁴⁶ Const. (1987), art. III, § 6 (Phil.).

⁴⁷ Id.

⁴⁸ Const. (1987), art. III, § 14 (Phil.).

⁴⁹ Id.



Third, on the matter of the Individual's Constitutional Right to Speedy, Impartial and Public Trial.⁵⁰ In relation to the previous paragraph, another concern occurring with the use of Artificial Intelligence are AI hallucination and AI bias and discrimination. AI hallucinations, it is a phenomenon where the AI perceives patterns or objects that are non-existent or imperceptible to human observers, creating outputs that are nonsensical or inaccurate, or in simple terms the AI hallucinated and gave an inaccurate or false response after being given commands.⁵¹ ⁵²AI hallucinations have already led to one notable case of a lawyer citing non-existent cases in his pleadings using AI that was discovered resulting in disciplinary action against said counsel and to his law firm.⁵³ ⁵⁴ ⁵⁵⁵⁶And it is not a lone incident as several more have appeared since then of lawyers using their AI tools to search for jurisprudence and they produce fictitious cases instead,⁵⁷

And AI bias and discrimination, since the AI formulates its results from reviewing and analyzing historical data but if said data used to train these systems contains biases, the AI may perpetuate or even amplify those biases, resulting to unfair outcomes, such as biased sentencing or case predictions based on race, gender, or socioeconomic status.⁵⁸ This unintentional bias and discriminatory outputs from the AI in legal data has the potential to continue racial biases and discrimination towards certain groups due to their race,

⁵⁰ Const. (1987), art. III, § 14 (Phil.).

⁵¹ International Business Machines Corporation, What are AI Hallucinations? (Sept. 1, 2023)

<https://www.ibm.com/think/topics/ai-hallucinations>

⁵² Merken, Sara, AI 'hallucinations' in court papers spell trouble for lawyers. Reuters (Feb. 19, 2025)

<https://www.reuters.com/technology/artificial-intelligence/ai-hallucinations-court-papers-spell-trouble-lawyers-2025-02-18/>

⁵³ Wadsworth v. Walmart Inc. LCC, No. 2:23 – CV – 118 – KHR (2025) (US)

<https://caselaw.findlaw.com/court/us-dis-crt-d-wyo/117003959.html>

⁵⁴ Wadsworth v. Walmart Inc., No. 2:33 – CV- 118 – KHR (US District Court of for the District of Wyoming, 2025) <https://www.law.buffalo.edu/content/dam/law/content/cle/25Mar04-materials-3.pdf>

⁵⁵ Merken, Sara, Lawyer who used flawed AI case citations say sanctions unwarranted in whistleblower case. Reuters (Aug. 28, 2024)

<https://www.reuters.com/legal/transactional/lawyer-who-used-flawed-ai-case-citations-says-sanctions-unwarranted-2024-08-27/>

⁵⁶ Merken, Sara, Lawyers in Walmart Lawsuit admit AI 'hallucinated' case citations. Reuters (Feb. 11, 2025)

<https://www.reuters.com/legal/legalindustry/lawyers-walmart-lawsuit-admit-ai-hallucinated-case-citations-2025-02-10/>

⁵⁷ Ambrogi, Bob, AI Hallucinations Strike Again: Two More Cases Where Lawyers Face Judicial Wrath for Fake Citations. LawSites: Tracking Technology and Innovation for the Legal Profession (May 14, 2025)

<https://www.lawnext.com/2025/05/ai-hallucinations-strike-again-two-more-cases-where-lawyers-face-judicial-wrath-for-fake-citations.html>

⁵⁸ Id.



gender or socio-economic thus impacting the administration of justice in litigations.^{59 60}

Both of these concerns can and will affect the impartiality of the trial court as, like in the previous discussion, AI bias and discrimination happens due to the AI analyzing data that contains biases towards certain socio-economic, racial or religious groups because historical cases have the respondents of said groups as being in the wrong side of the law and thus when producing recommendations and predictions may affect the impartiality of the court.⁶¹ And as for AI hallucinations, when a trial court discovered that the jurisprudence of a counsel is fictitious, this can result in delays to the proceedings or even outright lose the case of the respondent counsel's client due to the negligence of their counsel using AI in legal research and not being practicing diligence on whether its results were correct or faulty.⁶²

Moving on, there are issues of Transparency and Accountability. In the legal profession, accountability is essential as the decision of court can and will affect an individual's life for better or worse. To leave such decision to an AI, it may not always be clear how or why such decision is reached as it basis its decision on the data provided thus if said decision's basis is unclear, who shall be held accountable? The AI? Or the court that used said AI to come up with its decision? As the examples have shown, AI is still far from achieving the level of decision-making to solely leave it to their artificial discretion.⁶³

And lastly AI, while efficient and effective in the tasks assigned to it, it is still a cold and an emotionless set of computer algorithms and programming, clinical, lacking empathy and ethical discretion in the handling of cases as seen with the examples cited.⁶⁴ The AI "judges" used by Estonia and China follow the rule of law and from the data provided by litigants (oral testimonies, written testimonies) to draw their recommendation and predictions. It is on its face is fair and neutral, not influenced by the irrationality of human emotions yet it does so without factoring cultural context and general common knowledge a

⁵⁹ Id.

⁶⁰ Abu Nasser, Besan S. ET AL, Implications and Applications of Artificial Intelligence in the Legal Domain. Vol. 7, Issue 12 International Journal of Academic Information System Research (IJAISR) 18 – 25 (Dec. 2023)

⁶¹ Id.

⁶² Id.

⁶³ Id.

⁶⁴ Id.



human would understand and know, the AI only has what it was programmed to search, analyze and produce the results.⁶⁵

While it cannot be understated how much AIs are still far from perfect in their operations, the examples should not underscore how much said AI systems have improved the performance of these foreign judiciaries.

B. BENEFITS

Onwards with the benefits, to cite once more the Chinese and Estonian smart courts, using AI in the courtrooms have helped to reduce the judges' workload as said AI systems are able to take in and analyze data of the pending case to provide recommendations and predictions of likely outcomes based on previous court rulings and decisions of similar case more effectively and efficiently than a judge or their legal research teams.⁶⁶ This in turn allows the judges to focus on more complex cases.⁶⁷ Such use fulfills and upholds the Individual's Right to a Speedy Disposition of their cases⁶⁸ and Right to a Speedy Trial.⁶⁹

And besides the courts of law, law firms and lawyers in general are able to serve their clients more effectively as thru AI tools and systems its reduces the time and effort required in conducting legal research (the search for legal provisions, jurisprudence, etc.), drafting of documents (resolutions, pleadings and contracts), among others, thus allowing the counsels to cut time consumption and resource use, to efficiently deliver quality services to their clients.⁷⁰ ⁷¹ Furthermore, clients can also seek said AIs for legal counsel and advises without the hassle of looking for a lawyer to seek the same or without wasting the time of their counsel with simple and repetitive tasks required of their case.⁷²

⁶⁵ Papagianneas, Straton & Junius, Nino, Fairness and Justice through automation in China's smart courts. Vol. 51 Computer Law & Security Review. ScienceDirect (November 2023)
<https://www.sciencedirect.com/science/article/pii/S0267364923001073>

⁶⁶ Peng, Junlin & Xiang, Wen, The Rise of Smart Courts in China: Opportunities and Challenges to the Judiciary in a Digital Age. No. 9 Naveiñ Reet: Nordic Journal of Law and Social Research (NNJLSR) 345 – 372 (2019) <https://tidsskrift.dk/nnjlsr/article/download/122167/169417/255409>

⁶⁷ Id.

⁶⁸ Const (1987), art. III, § 14 (Phil.).

⁶⁹ 1997 Revised Rules of Criminal Procedure, § 115, A.M. No. 00-5-03-SC as amended (Phil.).

⁷⁰ Serrano Farah Law LP, Artificial Intelligence in the Law Industry. (Jan. 23, 2024)
<https://gableslawfirm.com/2024/01/artificial-intelligence-in-the-law-industry/>

⁷¹ Thomas Reuters, Artificial Intelligence: How AI is transforming the legal profession (2025). (Jan. 16, 2025)
<https://www.reuters.com/legal/transactional/lawyer-who-used-flawed-ai-case-citations-says-sanctions-unwarranted-2024-08-27/>

⁷² Id.



C. WHAT CAN BE DRAWN FROM ALL THIS?

Taking in both the downsides and benefits of the recent developments and progress made by foreign judiciaries in integrating Artificial Intelligence into their legal systems, it gives credence to Chief Justice Gesmundo to rightfully stress that AI should support judicial efficiency but never replace the human elements of justice⁷³. It does not erase the fact, the integration of AI systems is necessary to lift some of the burdens of the Philippine legal system. Although, Legal AI systems have advanced significantly since their pilot stages in the early 2010s, they are still far from achieving complete and flawless reliability in their performances as envisioned by their makers. Instead, the foreign examples shows that the integration of AI can help to improve the efficiency of already overworked and clogged judicial system and lessen the burdens placed on members of the judiciary to resolve docketed cases and serve their clients in a timely and less cost consuming manner, and at the same time, there are risks, ethical issues with violations of individual rights (the right to privacy, right to presumption of innocence, right to a speedy, impartial and fair public court, among others) and practical concerns when the AI, taking in data and creates, unintentionally, biased and discriminatory results or even outright false legal citations in the judicial proceedings.

The risks are present without a doubt but all technologies have risks when they were introduced, there is no exemption with emerging AI technologies. As the foreign legal systems have shown, what matters is: a) the creation and effectivity of legal framework to provide the guidelines and standards of using AI technology in the judiciary as what had been accomplished in some countries and still being debated in others; and most importantly, b) how we use the continually evolving AI technology in the law profession, as much as we blame the technology, in the end it is the law practitioner using AI that bears the consequences of faulty results delivered, hence, the exercise of diligence and careful approach must be taken, if not greater than ever, when using AI tools and systems in the pursuit of justice.⁷⁴

⁷³ Id.

⁷⁴ Lee, Hannah Louise, The Legal Outlook of AI in the Philippines. Digest Ph (Dec. 13, 2024) <https://www.digest.ph/blog/the-legal-outlook-of-ai-in-the-philippines>



Conclusion

In conclusion, the integration of Artificial Intelligence to the Philippine judiciary is necessary in order to provide efficiency to the judicial proceedings, to reduce the numbers of docketed cases, reduce the cost and to alleviate the delivery of prayed for relief but it must be approached with caution and care for the administration of justice as the likelihood of violating the constitutional rights of the individual and committing mistakes against litigants, by unintentional bias, discrimination or even faulty citation, remains ever so present. To avoid such; first, there must be a legal framework of guidelines and standards in effect in order to regulate the use and creation of AI systems; and second, the application and use must be done wisely and with diligence in order for the individual constitutional right to speedy and impartial trial to be upheld and exercised through using AI as it cannot be the replacement but a needed tool for the human presiding judges of the court and law practitioners of the nation to use in their duty for the pursuit and administration of justice.



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